

24STCV03360 24STCV03360

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MOTIONS TO COMPEL

The Court

tenders the following tentative decision in the matter Farah Bousselmi, et al. v. Onni Real Estate IX LLC, Los Angeles County Superior Court case number 24STCV03360, set for hearing on July 2, 2026. Farah Bousselmi and Rahma Jelassi (collectively, Plaintiffs) move for orders compelling further responses to the following discovery requests propounded on Onni Properties LLC (Defendant): (1) form interrogatories, set one (FROGs); (2) requests for admissions, set one (RFAs); (3) requests for production of documents, set one (RFPs); and (4) special interrogatories, set one (SPROGs). Plaintiffs also request a total \$6,540 in sanctions. Defendant opposes the motions and argues that sanctions are unwarranted. Plaintiffs' motions to compel further responses are granted. The Court awards \$2,690 in sanctions.

A.

Legal Standard

A party may move for an order

compelling further responses to a request for production of documents if the propounding party deems that responses are incomplete, evasive, or contain meritless objections. (Code Civ. Proc., § 2031.310, subd. (a).) A motion to compel further responses to requests for production "shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand." (Id., § 2031.310, subd. (b)(1).) A party may also move for an order compelling further responses to interrogatories if the propounding party deems that responses are incomplete, evasive, contain meritless objections, or improperly exercise the option to produce documents under section 2030.230. (Id., § 2030.300, subd. (a).) And a party may move for an order compelling

further responses to requests for admissions if it shows that an answer is evasive or incomplete or an objection is meritless. (Id., § 2033.290, subd. (a).)

“For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.’

[Citation]. Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence.

[Citation] These rules are applied liberally in favor of discovery.” (Gonzales v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.) “If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given, or the production be made on the resumption of the deposition.” (Code Civ. Proc., § 2025.480, subd. (i).)

B. Discussion

Plaintiffs propounded the relevant discovery on December 17, 2025. (Barkhordar Decl. ¶ 1.) Defendant served initial unverified responses on January 21, 2026. (Id. ¶ 2.) Defendant served subsequent verifications on February 27. (Id. ¶ 3.) Plaintiffs identified alleged deficiencies in Defendant's responses and sent a meet and confer letter addressing those issues on March 31. (Id. ¶¶ 4–5.) On April 14, Defendant responded to the meet and confer letter and committed to supplementing its responses. (Dzharatanyan Decl. ¶ 7.) The parties agreed that supplemental responses would be due by May 15. (Id. ¶ 8.) However, Defendant encountered difficulty obtaining verifications for those responses, and did not meet the May 15 deadline. (Id. ¶ 9.) Plaintiffs filed the present motions to compel further responses on May 22. Defendant served verified supplemental responses on June 12. (Id. ¶ 12.)

Defendant represents that all discovery issues identified by Plaintiffs in their motions have been resolved through the supplemental responses served on June 12. Plaintiffs do not contest this, in that they have not filed replies to Defendant's opposition briefs. Nevertheless, Defendant admittedly did not provide supplemental responses by the agreed deadline. Thus, Plaintiffs' motions to compel further responses are proper. Accordingly, the Court grants the motions. If Defendants' supplemental responses sufficiently address the identified deficiencies, no further responses will be required.

Sanctions are warranted pursuant to

Code of Civil Procedure sections 2030.300, 2031.310, and 2033.290. The Court credits Plaintiffs' counsel's requested hourly rate of \$350. (Barkhordar Decl. ¶ 15.) However, because the various motions to compel further responses and declarations are similar, the Court credits 3 hours drafting one motion and 1 hour for each of the other 3 motions. Additionally, the Court does not credit any time for drafting reply briefs, as none were filed. Finally, the Court credits 1 hour for appearing at the hearing and for the \$60 filing fee required for each motion. Accordingly, the Court awards Plaintiffs sanctions in the amount of \$2,690 ($[\$350 \text{ per hour}] \times [7 \text{ hours}] + 4 \times [\$60 \text{ filing fee}] = \$2,690$).

C. Conclusion

The Court grants

Plaintiffs' motions. Plaintiffs are awarded sanctions in the amount of \$2,690.